

NON DISCLOSURE AGREEMENT

FORMAT OF CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT (TO BE SIGNED BY FIRMS/ MANPOWER ENGAGED BY USER ORGANISATIONS)

This Confidentiality and Non-Disclosure Agreement (hereinafter referred to as the “Agreement”) is made and executed at _____ on this the _____ day of _____, 2018 (hereinafter referred to as the “Effective Date”).

BY AND BETWEEN

The <<insert office name>> acting through his duly authorized representative <<insert designation>>, having its official headquarters at _____ (hereinafter referred to as <<ECI/ CEO; as applicable>>) party of the First Part;

AND

<< name of the vendor >>, a [company] / [partnership firm] validly incorporated / organized and registered under the [laws of [____]] with its [registered/corporate/head office] situated at [_____] and acting through its authorized representative [Name of the representative]_____, contracted for the purpose of _____ vide contract/ MoU reference _____ dated _____ **OR**

<< name of the contractual employee >>, S/O _____, resident of _____ having Aadhaar No. _____, contracted as _____ <<insert job role>> for the period from _____ to _____ vide contract/ offer letter No. _____ dated _____ (delete the non applicable part)

(hereinafter referred to as the “Recipient”, which expression shall unless repugnant to the context or meaning thereof be deemed to include its successors, legal representatives, administrators, employees, consultants and permitted assigns) party of the Second Part.



ECI/ CEO and the Recipient shall hereinafter be individually referred to as “Party” and collectively as “Parties”.

Whereas:

1. ECI/ CEO has engaged the Recipient for _____
<< insert the services to be provided by the Recipient>> (“Services”).

[N.B.: Details of different types of services depending on the tracks.]

2. The Recipient had represented to ECI/ CEO that it has the requisite professional and technical skills to provide the Services.
3. The Recipient shall be involved in provision of the Services to ECI/ CEO and shall therefore have access to certain information, documents, etc. provided by ECI/ CEO or otherwise. Further, recipient hereby expressly admits that he has gone through the Cyber Security Regulations of the ECI and other policies governing cyber security and undertakes to abide by the provisions contained therein.
4. The Recipient acknowledges that during the course of provision of Services by the Recipient, there shall be exchange of information, discussions, deliberations, negotiations, etc. amongst the Parties and in performance of their obligations mentioned herein, there will be significant flow of ideas, information, strategy, technical data/ information from the ECI/ CEO to the Recipient. The Recipient agrees that any information disclosed to the Recipient by ECI/ CEO or acquired by the Recipient during such course will be used exclusively for the knowledge of the Recipient and shall not be divulged to any third party and/ or not utilized for any purpose other than for which it was disclosed without the prior written consent of ECI/ CEO.
5. ECI/ CEO and the Recipient have agreed to enter into and execute this Agreement on the terms and conditions set forth herein below. Recipient hereby agrees and undertakes that any sub-contracting of the services(governed by this agreement) shall only with prior and

express written permission of the ECI/ CEO and that the Recipient shall execute a separate Confidentiality and Non-Disclosure Agreement with the firm/ all the employees involved in the sub-contracted delivery of Services under this Agreement.

NOW, THEREFORE, in consideration of the mutual promises and covenants contained in this Agreement, the Parties hereto agree as follows:

Confidential Information

6. “Confidential Information” shall mean all confidential and proprietary information of ECI/ CEO which includes but is not limited to:
 - 6.1 all Confidential information relating to the organization, finances, processes, specifications, methods, designs, formulae, technology and business activities of and concerning ECI/ CEO.
 - 6.2 any and all information thereof in relation to the project or transaction contemplated by this Agreement, additions thereto and materials related thereto, produced at any time by the ECI/ CEO.
 - 6.3 all other information and material of ECI/ CEO relating to method of development/deployment, construction, manufacturing, operation, size, specification, quantity, use and service of equipment and components supplied to or used by ECI/ CEO , intellectual property including, but not limited to reports, process data, test data, performance data, inventions, trade secrets, systems software, object codes, source codes, copyrighted matters, methods, drawings, computation, calculations, computer program narration, flow charts, and all documentation therefore and all the components which might form part of confidential information and might be disclosed.
 - 6.4 Any other confidential and proprietary material and information, disclosed by ECI/ CEO in relation to this Agreement



whether orally or in writing; provided that with regard to any information shared orally by ECI/ CEO to the Recipient shall be notified to the Recipient in writing as confidential within 7 days of such discussion.

6.5 Any other information provided by ECI/ CEO to the Recipient or procured by the Recipient from ECI/ CEO shall be treated as Confidential Information under this clause irrespective of the fact whether the same is designated or earmarked as “Confidential”/“Restricted” etc. or not by ECI/ CEO; or even if the same is unclassified.

7. Unless otherwise specified by ECI/ CEO, following shall not be deemed to be a Confidential Information under this Agreement and Recipient shall have no obligation with respect to any such information which:

7.1 was generally known to the public prior to the disclosure under this Agreement, provided the same is declared to be in the public domain by ECI/ CEO at the time of receipt of such information; or

7.2 is already known to Recipient prior to the execution of this Agreement as demonstrated by the Recipient; or

7.3 is received by and/or from a third party without breach of this Agreement or any other obligation to maintain the confidentiality of such information; or

7.4 is independently developed by Recipient apart from the transaction as contemplated under this Agreement; or

7.5 is approved for release by written authorization of ECI/ CEO; or

7.6 is disclosed pursuant to the lawful requirement or request of a Governmental agency, or disclosure is required by operation of law provided the Recipient gives ECI/ CEO prompt notice

and assists ECI/ CEO, at ECI/ CEO's expense, in obtaining an applicable protective order.

Non-Disclosure Covenant

- 8 Except as otherwise provided in this Agreement, the Recipient hereby agrees that in respect of all Confidential Information received from ECI/ CEO by way of non-disclosure pursuant to this Agreement, the Recipient shall:-
- 8.1 keep such Confidential Information absolutely secret and in confidence and treat such Confidential Information and apply the same standard of duty and care as; the Recipient accords to their own Confidential Information;
 - 8.2 only use Confidential Information for the permitted purpose as contemplated under this Agreement;
 - 8.3 not disclose in any manner whatsoever any Confidential Information to anyone except those of its directors, officers: -
 - 8.3.1 who need such information for the permitted purpose under this Agreement; and/or
 - 8.3.2 are informed of the proprietary and confidential nature of the Information; and/or
 - 8.3.3 come under the purview of this Agreement by virtue of the Recipient's acceptance same.
 - 8.4 not disclose in any manner whatsoever the existence of this Agreement, the terms contained in this Agreement or the exchange of information by the Parties pursuant to this Agreement to a third party.
 - 8.5 the non-disclosure obligation of the Recipient under this Agreement shall apply during and after the termination of the Agreement unless and until released in writing by ECI/ CEO



after the expiry of the Contract for services, the Recipient agrees that all conditions and obligations imposed under this Agreement apply during the time that the Recipient has access to Confidential Information and at all times thereafter.

9. The Recipient further agrees not to divulge any Confidential Information or not to do any act or divulge any information of any nature whatsoever which shall be prejudicial to the safety or interests of ECI/ CEO or the Government of India including but not limited to those mentioned herein below: -
 - 9.1 make any sketch, plan, model, or note using the Information provided by ECI/ CEO which might be, directly or indirectly, useful to any third party;
 - 9.2 obtain, collect, record or publish or communicate to any other person any secret / official code or password, or any sketch, plan, model, or note or other document or information which might be, directly or indirectly, useful to any third party or which relates to a matter of disclosure of which is likely to affect the sovereignty, integrity or security of India or friendly relations with foreign States using the Information provided by ECI/ CEO.
10. As regards the Confidential Information and acts or information as mentioned in Clause 9 above, the Recipient hereby agrees that the Recipient shall not:
 - 10.1 communicate the Confidential Information, code or password, sketch, plan, model, article, note, document or information to any person unless authorized in writing by ECI/ CEO; or
 - 10.2 use the Information provided by ECI/ CEO in its possession for the benefit of any foreign power or in any manner prejudicial to the safety of the State or the Election Process; or

- 10.3 retain any Confidential Information, code or password, sketch, plan, model, article, note, document in its possession or control when it has no right to retain it, or fails to comply with all directions issued by ECI/ CEO with regard to return or disposal thereof; or
- 10.4 fail to take reasonable care of, or so conduct itself so as to endanger the safety of the Confidential Information, sketch, plan, model, note, document, official code, password or information provided by ECI/ CEO.

Other Obligations of the Recipient

- 11. The Recipient hereby acknowledges that as a result of its access to the Confidential Information, it will occupy a position of trust and confidence and maintain the confidentiality of all the Confidential Information shared by ECI/ CEO and without limitation of the foregoing, the Recipient agrees not to do the following:-
 - 11.1 Communicate or disclose, directly or indirectly, any of the Confidential Information, in full or part thereof to a third party, or
 - 11.2 Take any other action which may lead to breach of the confidential and propriety nature of such Confidential Information provided by ECI/ CEO.
- 12. The Recipient shall take reasonable steps to maintain the security and confidentiality of the Confidential Information and take reasonable steps to cause its conduct to comply with the Agreement, as fully as if such persons had executed this Agreement and made the same Agreement as to themselves with respect to the Confidential Information as is made herein by the Recipient.
- 13. The Recipient acknowledges that such Confidential Information provided by ECI/ CEO shall remain the property of ECI/ CEO and



that the disclosure and/or provision of Confidential Information by ECI/ CEO is solely for the purposes as stipulated by ECI/ CEO and shall not be used directly or indirectly to gain a competitive advantage over or negatively affect ECI/ CEO.

14. The Recipient acknowledges and agrees that it shall not make, have made, replicate, reproduce, use, sell, incorporate or otherwise exploit, for his own or any other purpose, any of the Confidential Information provided by ECI/ CEO that is or may be revealed to him by ECI/ CEO unless specifically authorized to do so in writing by ECI/ CEO .
15. The Recipient acknowledges that any and all the Confidential Information that may be disclosed by ECI/ CEO under this Agreement is the valuable property of ECI/ CEO and is highly proprietary and confidential in nature. The Recipient further acknowledges that the disclosure, distribution, dissemination and/ or release of the Confidential Information by the Recipient without the prior written consent of ECI/ CEO will cause ECI/ CEO to suffer severe, immediate and irreparable damage. The Recipient agrees that in the event the Recipient does disclose, disseminate, distribute and/ or release the Confidential Information provided by ECI/ CEO which comes into its possession or knowledge as a result of this Agreement, without the prior, written consent of ECI/ CEO, then ECI/ CEO shall be entitled to seek immediate injunctive relief in order to enforce the provisions of this Agreement.
16. The Recipient further agrees to take reasonable steps, no less rigorous than those taken to protect its own confidential and proprietary information to prevent any unauthorized/ inadvertent disclosure of the Confidential Information. The Recipient agrees that upon termination of this Agreement, the Recipient shall forthwith return to ECI/ CEO and/or provide proof of destruction any and all Confidential Information or any other information as mentioned under the preceding Clauses of this Agreement and all components

which and might form part of Confidential Information and might be disclosed.

17. The Recipient shall restrict its discussions or negotiations with any third party during the term of this Agreement except with prior written permission of ECI/ CEO. However, the said permission of ECI/ CEO may be subject to:
 - 17.1 For services – include terms which restrict the deployment of the same personnel who are working on ECI/ CEO project with any other organization without permission of ECI/ CEO during engagement with ECI/ CEO.
 - 17.2 For products – The configuration, deployment details, etc of the products provided by the Recipient to ECI/ CEO shall not be discussed by the Recipient with any third party.

Penalty

18. It is agreed between the Parties that in the event of any breach or default or offence committed by the Recipient under this Agreement, ECI/ CEO shall be entitled to take appropriate legal action against the Recipient, both civil as well as criminal, under the Official Secrets Act, 1923, Indian Penal Code, 1860, Information Technology Act, 2000, or any applicable laws prevalent in India or any other relevant statutory enactment or legislation in India. In such an eventuality, ECI/ CEO further reserve its right to take any other appropriate action, in law or otherwise, against the Recipient, as it deems fit and necessary. The Recipient agrees that nothing in this Agreement constitutes a waiver by ECI/ CEO of the right to prosecute the Recipient for any statutory violation.

Miscellaneous

19. Interpretation: The interpretation of ECI/ CEO with respect to the provisions of this Agreement shall be accepted by the Recipient



and if dissatisfied with the interpretation, the Recipient can make an appeal to the Chief Election Commissioner of India. Any legal remedy available to the Recipient under the laws of India shall only be resorted to after all in-house mechanism of redressal at ECI/ CEO has been exhausted.

20. **Supersession:** This Agreement constitutes the entire understanding between the Parties and supersedes all prior agreements and understandings pertaining to the subject matter hereof.
21. **Amendments:** The Agreement may be amended at any time by mutual agreement of the Parties in writing. No amendment, variation or modification of this Agreement shall be valid unless it is made in writing and signed by an authorized representative of each Party.
22. **Severability:** If any provision in this Agreement is held by a court or any competent authority to be void or unenforceable, then such provision shall be deemed to be severed, but the validity and enforceability of the remaining provisions shall not be affected, unless enforcement of this Agreement without the invalidated provision shall be grossly inequitable under all of the circumstances or shall affect the primary purposes of this Agreement.
23. **Waiver:** The non-exercise of or delay in exercising any power or right by ECI/ CEO shall not operate as a waiver of its power or right. A waiver by a Party shall be valid only if such waiver of power or right is in writing and is signed by a duly authorized officer of such Party.
24. **Relationship between the Parties:** Each Party is an independent contractor and not an agent or a partner of, or joint venture with, the

other Party for any purpose. Neither Party by virtue of this Agreement shall have any right, power of authority to act or create any obligation, express or implied, on behalf of the other Party.

Notices

25. Every notice, demand or other communication under this Agreement shall:
 - 25.1 Be in writing, delivered by hand, or by registered AD post or Speed post AD or by fax number as notified by parties.
 - 25.2 Be sent to the parties at their principal place of business in India or to such other address as either party may in writing hereafter notify to the other party.
 - 25.3 Be deemed to have been received:
 - 25.3.1 When delivered by hand; at the time so delivered if during business hours on a business day for the recipient;
 - 25.3.2 If given by registered AD post or Speed post AD, 48 hours after it has been put into post, [To be confirmed] and
 - 25.3.3 If sent by fax or electronic mail (E-mail), at the completion of transmission during business hours at its destination or, if not within the business hours, at the opening of the next period of business hours, but subject to”
 - 25.3.4 Proof by the sender that it holds a printed transmission report confirming dispatch of the transmitted notice;
 - 25.3.5 The sender not receiving any telephone calls from the recipient, to be confirmed in writing, that the fax has not been received in legible form;
26. Governing Law and Jurisdiction: This Agreement shall be construed, interpreted, and enforced pursuant to the laws of India and all



disputes arising out of this Agreement shall be subject to jurisdiction of the appropriate Court of Delhi, India.

IN WITNESS WHEREOF, the Parties have hereunto set and subscribed their respective hands, the day, month and year first above written.

SIGNED AND DELIVERED for and on behalf of
the Election Commission of India represented by
Designation: _____

Name: _____

WITNESSES:

- 1.
- 2.

SIGNED AND DELIVERED by and on behalf of _____
[Recipient]

Represented by its Authorized Signatory/ by Recipient himself,

Mr./Ms. _____

WITNESSES:

- 1.
- 2.

NOTES

This image shows a full page of blank, lined paper. It features approximately 20 evenly spaced horizontal grey lines across its entire width, providing a guide for handwriting or typing. The paper itself is a clean, off-white color. There are no margins, text, or other markings present on the page.

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